

Terms of Service

DRAFT template - finalize with counsel before use.

These Terms govern access to and use of the Vertofi platform provided by **VERTOFI PRIVATE LIMITED** (CIN U62099TS2026PTC211039) ("Vertofi"). By creating an account or using the service, you ("Customer") agree to these Terms.

Effective date: [Effective Date]

1. The service

Vertofi is a subscription software platform for predictive accounting and financial intelligence. Features available depend on your subscription plan.

2. Accounts & eligibility

You must be a business (or its authorised representative) and provide accurate information. You are responsible for safeguarding credentials and for activity under your account.

3. Subscriptions, fees & taxes

- Plans: Starter, Growth and Pro, billed as displayed (monthly or longer terms), **exclusive of GST**, which is charged additionally as applicable.
- A free trial may be offered; access to paid features requires an active paid subscription after the trial.
- Fees are payable in advance and are non-refundable except as stated in the Refund & Cancellation Policy (Document 08).

4. Customer data & responsibilities

- You retain ownership of the financial and business data you provide.
- You grant Vertofi a limited licence to process that data to provide the service (see the Data Processing Agreement, Document 03).
- You are responsible for the **accuracy and timely submission** of source data, and for reviewing outputs before relying on them for filings or decisions.

5. Acceptable use

Use is subject to the Acceptable Use Policy (Document 04). You must not misuse, reverse-engineer, overload, or use the service unlawfully.

6. AI-assisted features

Some features use artificial intelligence to generate suggestions, forecasts and analyses. These are **decision-support tools**, may be incomplete or inaccurate, and do not constitute professional, legal, tax or financial advice. You remain responsible for your filings and decisions.

7. Third-party integrations

Connections to banking (Account Aggregator), GST, payment, accounting and messaging providers are subject to those providers' terms. Availability may depend on third-party approvals and credentials.

8. Service levels & support

Availability and support are described in the Service Level Agreement (Document 05).

9. Intellectual property

Vertofi and its licensors own all rights in the platform, software and the Vertofi Intelligence Suite(TM) marks. No rights are granted except the limited right to use the service per these Terms.

10. Confidentiality

Each party will protect the other's confidential information and use it only to perform under these Terms.

11. Warranties & disclaimers

Except as expressly stated, the service is provided "as is". Specific accuracy commitments (e.g., Accounting Warranty+) apply only as described in the relevant plan and subject to its conditions.

12. Limitation of liability

To the extent permitted by law, neither party is liable for indirect or consequential losses; aggregate liability is limited to the fees paid in the [twelve (12)] months preceding the claim. Nothing limits liability that cannot be limited by law.

13. Suspension & termination

We may suspend or terminate for breach, non-payment, or legal/security reasons. On termination you may export your data for [30] days, after which it may be deleted subject to legal retention.

14. Changes to the service / Terms

We may modify features or these Terms; material changes will be notified. Continued use after changes constitutes acceptance.

15. Governing law & disputes

These Terms are governed by the laws of India. Courts at [Hyderabad, Telangana] have exclusive jurisdiction, subject to any agreed arbitration.

16. Contact

VERTOFI PRIVATE LIMITED - [Registered Office Address] - info@vertofi.com

This is a template and does not constitute legal advice.